

The City of Nagpur Corporation (Amendment) Act, 1974

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State of Maharashtra - Act

The City of Nagpur Corporation (Amendment) Act, 1974

MAHARASHTRA

India

The City of Nagpur Corporation (Amendment) Act, 1974

Act 3 of 1975

Published on 9 January 1975

Commenced on 9 January 1975

[This is the version of this document from 9 January 1975.]

[Note: The original publication document is not available and this content could not be verified.]

The City of Nagpur Corporation (Amendment) Act, 1974

Maharashtra Act

No. 3 of 1975

[Dated 9th January, 1975]

For Statement of Objects and Reasons, see Maharashtra Government Gazette, Part V, Extraordinary, page 1204.

An Act further to amend the City of Nagpur Corporation Act, 1948

Whereas it is expedient further to amend the City of Nagpur Corporation Act, 1948, for the purposes hereinafter appearing; It is hereby enacted in the Twenty-fifth Year of the Republic of India as follows :-

1.

Short title.

- This Act may be called the City of Nagpur Corporation (Amendment) Act, 1974.

2.

Amendment of Section 16 of C. P. and Berar II of 1950.

- In section 16 of the City of Nagpur Corporation Act, 1948 (hereinafter referred to as "the principal Act"), for the words "from the date of such notification" the words "from the date specified for that purpose in such notification", shall be substituted.

3.

Substitution of section 17 of C. P. and Berar II of 1950.

- For section 17 of the principal Act, the following section shall be substituted, namely :-

"17. Term of office. - (1) Subject to the provisions of this Act, all Councillors of the Corporation constituted as aforesaid shall hold office for a term of five years commencing from the date on which they have entered on their office, but the said term may be extended by the State Government by notification in the Official Gazette, to a term not exceeding in the aggregate six years for reasons to be stated in the notification:

Provided that, before such notification is published in the Official Gazette, the State Government shall invite and consider objections if any, from persons entitled to vote at ward elections under this Act.

(2)

Where there is an interval between the expiry of the term or extended term of office of the outgoing Councillors and the date notified for the newly elected Councillors to enter on their office, the outgoing Councillors shall continue to hold office until their successors enter on their office, notwithstanding that their term of office or the extended term of office, as the case may be, has expired :

Provided that, the State Government may, by notification published in the Official Gazette, stating the reasons, direct that the outgoing Councillors shall vacate their office on the expiry of their term or extended term of office, as the case may be. In such event, the State Government shall, by like notification, appoint an Administrator to exercise all the powers, perform all the duties and discharge all the functions of the Corporation and the Standing Committee, until the ward elections are held and the newly elected Councillors enter on their office.

(3)

An outgoing Councillor shall, if otherwise qualified, be eligible for further election."

4.

Substitution of section 24 of C. P. and Berar II of 1950.

- For section 24 of the principal Act, the following section shall be substituted, namely :-

"24. First meeting after general election. - After every general election, notwithstanding anything contained in this Act, the Commissioner shall call the first meeting of the Corporation on the date specified in the notification issued under section 16, to elect the Mayor, the Deputy Mayor, the Standing Committee and the Special Consultative Committees."

5.

Amendment of section 50 of C. P. and Berar II of 1950.

- In section 50 of the principal Act, in sub-section (1),-

(a)

for the words "five hundred rupees" the words "one thousand rupees" shall be substituted;

(b)

in the proviso,-

(i)

in paragraph (1), for the words "three thousand rupees," the words "six hundred rupees," shall be substituted;

(ii)

in paragraph (2), for the words "one hundred and fifty rupees" and "three hundred rupees" the words "four hundred and fifty rupees" and "six hundred rupees" shall, respectively, be substituted.

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